

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED ☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Solicitation/Contract Form Continuation

Instrument Name: Europe Medical Equipment

Product Service Code : 6530

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Product Service Description: Refrigerator (Medical Use) See additional information under Attachment 1, CLIN 0001. Product Service Code: 6530 Pricing Arrangement: Firm Fixed Price	1	Each		
0002	Product Service Description: Medical Exam Table See additional information under Attachment 1, CLIN 0002. Product Service Code: 6530 Pricing Arrangement: Firm Fixed Price	1	Each		
0003	Product Service Description: White Nose Machine See additional information under Attachment 1, CLIN 0003. Product Service Code: 6530 Pricing Arrangement: Firm Fixed Price	6	Each		
0004	Product Service Description: Seasonal Affective Disorder (SAD) Light See additional information under Attachment 1, CLIN 0004. Product Service Code: 6530 Pricing Arrangement: Firm Fixed Price	6	Each		
0005	Product Service Description: Suicide Special Housing Unit (SHU) Bed See additional information under Attachment 1, CLIN 0005. Product Service Code: 6530 Pricing Arrangement: Firm Fixed Price	4	Each		
0006		4	Each		

	Product Service Description: Suicide Special Housing Unit (SHU) Wall Mount & Desk Seat See additional information under Attachment 1, CLIN 0006. Product Service Code: 6530 Pricing Arrangement: Firm Fixed Price				
0007	Product Service Description: Automated Pill counter Machine See additional information under Attachment 1, CLIN 0007. Product Service Code: 6530 Pricing Arrangement: Firm Fixed Price	1	Each		

Continuation of Description

Requirements

Europe Medical Equipment - Germany

Continuation of Deliveries or Performance

0001	Delivery Schedule Delivery On Or Before Delivery Date 30 Jun 2026 Quantity 1 Each Address and POC Ship To DoDAAC: W90ZUA W6L2 USA CA EUROPE COMMANDER USACA EUROPE, UNIT 29724 APO, AE 09136 UNITED STATES Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0002	Delivery Schedule Delivery On Or Before Delivery Date 30 Jun 2026 Quantity 1 Each Address and POC Ship To DoDAAC: W90ZUA W6L2 USA CA EUROPE COMMANDER USACA EUROPE, UNIT 29724 APO, AE 09136 UNITED STATES Special Handling/Notes FoB Details

	Party to Pay Transportation Cost: Contractor Point Type: Destination
0003	Delivery Schedule Delivery On Or Before Delivery Date 30 Jun 2026 Quantity 6 Each Address and POC Ship To DoDAAC: W90ZUA W6L2 USA CA EUROPE COMMANDER USACA EUROPE, UNIT 29724 APO, AE 09136 UNITED STATES Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0004	Delivery Schedule Delivery On Or Before Delivery Date 30 Jun 2026 Quantity 6 Each Address and POC Ship To DoDAAC: W90ZUA W6L2 USA CA EUROPE COMMANDER USACA EUROPE, UNIT 29724 APO, AE 09136 UNITED STATES Special Handling/Notes FoB Details

	Party to Pay Transportation Cost: Contractor Point Type: Destination
0005	Delivery Schedule Delivery On Or Before Delivery Date 30 Jun 2026 Quantity 4 Each Address and POC Ship To DoDAAC: W90ZUA W6L2 USA CA EUROPE COMMANDER USACA EUROPE, UNIT 29724 APO, AE 09136 UNITED STATES Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0006	Delivery Schedule Delivery On Or Before Delivery Date 30 Jun 2026 Quantity 4 Each Address and POC Ship To DoDAAC: W90ZUA W6L2 USA CA EUROPE COMMANDER USACA EUROPE, UNIT 29724 APO, AE 09136 UNITED STATES Special Handling/Notes

	FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0007	Delivery Schedule Delivery On Or Before Delivery Date 30 Jun 2026 Quantity 1 Each Address and POC Ship To DoDAAC: W90ZUA W6L2 USA CA EUROPE COMMANDER USACA EUROPE, UNIT 29724 APO, AE 09136 UNITED STATES Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		
52.222-19	Child Labor-Cooperation with Authorities and Remedies. (Deviation 2026-O0038)	2026-03		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05		
52.229-12	Tax on Certain Foreign Procurements.	2021-02		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10		
52.232-40	Providing Accelerated Payments	2023-03		

to Small Business
Subcontractors.

52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01		
252.225-7056	Prohibition Regarding Business Operations with the Maduro	2023-01		

Regime.

252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.247-7023	Transportation of Supplies by Sea.	2024-10

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

COMBO

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>HQ0490</u>
Issue By DoDAAC	<u>W81K00</u>
Admin DoDAAC	<u>W81K00</u>
Inspect By DoDAAC	<u>W90ZUA</u>
Ship To Code	<u>W90ZUA</u>
Ship From Code	—

Mark For Code	_____
Service Approver (DoDAAC)	_____
Service Acceptor (DoDAAC)	_____
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TBD

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Paragraph 52.212-4(w) is hereby added:

(w) The non-FAR Part12 discretionary FAR and DFARS clauses included herein are incorporated into this contract either by reference or in full text. If incorporated by reference, see clause 52.252-2 herein for locations where full text can be found.

(End of Addendum)

*** END OF NARRATIVE ***

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-04		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.233-7001	Choice of Law (Overseas).	1997-06		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.252-2	Clauses Incorporated by Reference.	1998-02		

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<http://acquisition.gov/>

(End of clause)

52.252-6 Authorized Deviations in Clauses. 2020-11

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

The attachments listed in this Section are incorporated by reference and made part of this contract with the same force and effect as if included in full text.

*** END OF NARRATIVE ***

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	Attachment 1 Salient Characteristics (Medical Equipment)	Salient Characteristics		05 May 2026			Attachment	No

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	2023-06		

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense

telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

1.QUOTE SUBMISSION REQUIREMENTS:

a. Offerors shall submit quotes via e-mail in response to this solicitation to Contract Specialist Joseph Flores at joseph.a.flores.civ@health.mil, cc'ing Contracting Officer Albert Lee at albert.a.lee.civ@health.mil. The quotation must arrive by the time specified in block 8 of the solicitation to be considered for award. Offerors shall ensure that the SF 1449, Blocks 17a and 30a - c, are completed in their entirety, and a copy of your Certifications and Representation is submitted. Additionally, offerors shall acknowledge any amendments to the solicitation by signing each amendment. The quotation shall also have a title page identifying the offeror, the full address, phone and facsimile numbers, points of contact (POCs) of the offeror, the solicitation number, and the quotation contents.

b. The Offeror is wholly responsible for timely receipt of its quote; late receipt by the Government shall not provide the basis for a protest. Please note that large files can be stripped from emails based on the amount of data transmission. Files, larger than 20MB, may need to be transmitted in separate emails. All emails, regardless of size, need to be received by the government server, by the stated date and time. The Government is not responsible for any failure of transmission or receipt of the quotation, or any failure of the offeror to verify receipt of the emailed quotation. All quotes submitted after the deadline will be considered untimely and ineligible for award.

c. Offerors shall be registered and current in the System for Award Management (SAM) and shall not have any Active Exclusions listed within SAM to be eligible for award. The SAM internet website is <https://sam.gov>. Offerors shall also submit a completed copy of all provisions in the Solicitation, or confirm their SAM registration is current, complete, and accurate. Quotes are to arrive by the time specified in block 8 of the solicitation.

2.QUOTE INFORMATION: For a quote to be considered Acceptable, it shall contain the following information:

a. **PRICES:** The quote shall set forth the price for each piece of equipment being provided. These prices shall be firm fixed price and shall not be adjusted upon acceptance of the quote by the Government. The equipment prices set forth in the quote shall include delivery, assembly, installation, and the removal/disposal of existing equipment being replaced at Sembach Kaserne, Germany.

b. Offerors shall provide the model number and product literature for the products being quoted such that the Government can evaluate compliance of the products being quoted against the Government's provided salient characteristics.

(End of Addendum)

*** END OF NARRATIVE ***

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Technical Acceptability

Price

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

(a). The Government will award a Purchase Order resulting from this solicitation, to the responsible Request For Quote (RFQ) conforming to the solicitation, that is Best Value. Award will be on an all or none basis. The following evaluation factors shall be used to evaluate offers: Technical Capability and Price.

(b) Technical Acceptability: Offer will be found technically acceptable if the offer meets the requirements specified in the solicitation.

(1) Acceptable: The offerors shall meet the submission of offers instructions set forth in the solicitation.

(2) Unacceptable: An unacceptable rating will be assessed on any offeror that presents items that demonstrate any of the following:

(i) Failure to meet the submission of offers instructions set forth in the solicitation.

(ii) Failure to explain how your company will meet the requirement in sufficient detail for the Government to determine whether the items satisfactorily meets the requirements of this solicitation.

(c) Price: Price will be evaluated using procedures IAW FAR 12 including, but not limited to, comparison of proposed price received in response to the solicitation with a comparison to the Independent Government Estimate (IGE). Evaluation of price will include a determination that the price is fair and reasonable.

(End of Addendum)

*** END OF NARRATIVE ***

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	2020-06		

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

52.252-1	Solicitation Provisions	1998-02
	Incorporated by Reference.	

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting

the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<http://acquisition.gov/>

(End of provision)

52.252-5	Authorized Deviations in Provisions.	2020-11
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Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DoD FAR Supplement Federal Acquisition Regulation (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

SALIENT CHARACTERSTICS FOR MEDICAL EQUIPMENT

Medical (Clinic) Equipment- Sembach Kaserne, Germany BLDG. 410

All equipment procured under this requirement must meet the following minimum standards to ensure safety, compatibility, durability, and mission support within a correctional medical environment located in Germany.

Electrical & Power Compatibility

•Equipment must be fully compatible with German electrical systems, operating on 220–240V, 50Hz power.

•Equipment must include:

oIntegrated compatibility with European power standards OR

oAppropriate manufacturer-approved voltage converters or transformers.

•Power cords and plugs must be compatible with EU/German outlets (Type C or F) or include approved adapters.

•Electrical components must comply with applicable EU safety and electrical standards.

CLIN	ITEM	QTY	DESCRIPTION	REQUIREMENTS
00001	Refrigerator (Medical Use)	1 EA	1. Commercial or medical-grade refrigerator suitable for continuous operation in a clinical or custodial medical environment 2. Minimum storage capacity sufficient to support daily medical operations (approx. 18–20 cubic feet or greater) 3. Maintains consistent internal temperature range appropriate for medical supplies (36°F–46°F / 2°C–8°C) 4. Digital temperature display visible externally 5. Adjustable interior shelving for organized medical storage 6. Locking mechanism to restrict unauthorized access 7. Energy-efficient design compliant with U.S. or EU energy standards 8. Standard electrical compatibility with facility power requirements 9. Durable exterior suitable for institutional use 10. Manufacturer warranty included (minimum 1 year)	The price shall be inclusive of delivery, assembly, installation, and the removal/disposal of existing equipment being replaced
00002	Medical Exam Table	1 EA	1. Fixed-height or adjustable-height medical examination table 2. Weight capacity sufficient for adult patients (minimum 400 lbs) 3. Padded surface with seamless, non-porous upholstery 4. Upholstery material must be antimicrobial, fluid-resistant, and easy to disinfect 5. Paper roll holder or accessory compatibility preferred 6. Stable frame construction suitable for repeated daily use 7. Designed for use in clinical or correctional healthcare settings 8. Neutral color preferred to align with medical environment standards 9. Manufacturer warranty included	The price shall be inclusive of delivery, assembly, installation, and the removal/disposal of existing equipment being replaced
00003	White Noise Machine	6 EA	1. Electronic white noise or sound masking device 2. Capable of producing consistent ambient sound to reduce environmental noise 3. Multiple sound options (e.g., white noise, fan, ambient tones) 4. Adjustable volume controls 5. Continuous operation capability for extended periods 6. Compact design suitable for patient rooms or clinical areas 7. Powered by AC adaptor or batteries 8. Durable housing suitable for institutional use 9. Simple user interface with minimal controls	The price shall be inclusive of delivery, assembly, installation, and the removal/disposal of existing equipment being replaced
00004	SAD (Seasonal Affective Disorder) Light	6 EA	1. Light therapy lamp designed to assist with seasonal affective disorder or mood regulation 2. Light output approximately 10,000 lux at recommended distance 3. UV-free light to ensure user safety 4. Adjustable brightness settings 5. Stable base or mounting option for desktop or table use 6. Timer or automatic shut-off feature preferred 7. Suitable for medical or wellness environments 8. Durable construction for repeated use 9. Manufacturer safety certifications included	The price shall be inclusive of delivery, assembly, installation, and the removal/disposal of existing equipment being replaced
00005	Suicide Special Housing Unit (SHU) Bed	4 EA	1. Suicide-resistant bed designed specifically for Special Housing Unit (SHU) or suicide watch environments 2. Constructed from solid, one-piece or tamper-resistant material 3. No sharp edges, protrusions, ligature points, or separable components 4. Fixed or floor-mounted design to prevent movement or misuse 5. Smooth, sealed surfaces for sanitation and infection control 6. Weight capacity suitable for adult occupants 7. Resistant to impact, vandalism, and bodily fluids 8. Designed to meet correctional safety standards 9. Vendor must provide installation or mounting specifications	The price shall be inclusive of delivery, assembly, installation, and the removal/disposal of existing equipment being replaced
00006	Suicide Special Housing Unit (SHU) Wall Mount & Desk Seat	4 EA	1. Suicide-resistant wall-mounted desk and seat unit 2. Constructed of tamper-proof, ligature-resistant materials 3. No exposed fasteners accessible to occupants 4. Rounded edges and smooth surfaces to prevent injury 5. Fixed installation to wall to prevent removal or misuse 6. Suitable for use in correctional or SHU environments 7. Resistant to repeated impact and vandalism 8. Easy-to-clean surface compliant with sanitation standards Includes mounting hardware and installation instructions	The price shall be inclusive of delivery, assembly, installation, and the removal/disposal of existing equipment being replaced
00007	Automated Pill counter Machine	1 EA	1. Pill counting and verification machine countertop 2. The user interface shall be intuitive, requiring minimal training to improve workflow efficiency. 3. Constructed of tamper-proof, ligature-resistant materials 4. Rounded edges and smooth surfaces to prevent injury 5. Suitable for use in correctional environment 6. Easy-to-clean surface compliant with sanitation standards 7. Includes installation and usage instructions	The price shall be inclusive of delivery, assembly, installation, and the removal/disposal of existing equipment being replaced